

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003635

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: ABSOLUTE
RESOLUTIONS INVESTMENTS, LLC

vs.

DEFENDANT: POLA G. BENEDICTO

NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiffs filed a Motion for Entry of Judgment after settlement with the Defendants.

Plaintiff states that the parties have settled this action by entering into a written settlement agreement which provides that a judgment would not be entered so long as Defendant made certain periodic payments towards a settlement amount. The Settlement further provided that the parties agreed that the court would retain jurisdiction under C.C.P. §664.6 to order entry of judgment. Defendant has defaulted under the terms of the written settlement agreement.

The motion is unopposed. Defendant has not filed a response, nor was an opposition to the motion for approval filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's motion is therefore GRANTED in its entirety.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003751

PRESIDING: HON. MARK A TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: VICTOR TRUJILLO	
vs.	
DEFENDANT: AUSTIN GRAVES, ET AL	

NATURE OF PROCEEDINGS: 1) MOTION – COMPEL - DISCOVERY FACILITATOR PROGRAM

2) MOTION – COMPEL ANSWERS TO INTERROGATORIES – DISCOVERY FACILITATOR PROGRAM

RULING

Pursuant to Marin County Rule, Civil 2.13B, on July 20, 2026, John Feeney, Esq. was appointed to preside as Discovery Facilitator for Defendant’s Motion to Compel Document Production, responses to interrogatories and for sanctions. The Court has not received a Declaration of Non-Resolution from either party, in particular *the moving party*, within five court days prior to the hearing on the motion, as required by MCR Civ 2.13H.

The court received a status letter from the Discovery Facilitator, who recommends the motion be granted in its entirety.

The motion was not opposed by the Plaintiff. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Defendant’s motion to compel, including the sanction request, is GRANTED.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.